

25STCV23821B 25STCV23821B

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-20

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Case Number: 25STCV23821B Hearing Date: August 20, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 20, 2026

CASE NUMBER

25STCV23821B

MOTIONS

Motion to Stay Proceedings;

Motion for Protective Order

MOVING PARTIES

Defendants Boulevard Management, Inc., Lester Knispel,
Mary Susan Barner, and Altaira Campos

OPPOSING PARTY

Plaintiff Krista Joiner

MOTION

Defendants

Boulevard Management, Inc., Lester Knispel, Mary Susan Barner, and Altaira Campos ("Defendants") move to stay this action pending resolution of the property division trial in *In re Marriage of Joiner* (Super. Ct. L.A. County, 2021, No. 21STFL01704). Defendants also move for a protective order regarding pending discovery. Plaintiff Krista Joiner ("Plaintiff") opposes the motions.

ANALYSIS

The Court has the power to "amend and control its process and orders so as to make them conform to law and justice . . . ," which includes the power to stay proceedings. (Code Civ. Proc., § 128, subd. (a)(8); see also *Bailey v. Fosca Oil Co.* (1963) 216 Cal.App.2d 813, 817-818.)

In the instant case, Plaintiff retained Defendants to manage her business and to provide accounting and tax services in connection with the business Plaintiff co-owned with her former spouse, Alvin Nathaniel Joiner. Plaintiff contends Defendants assisted Plaintiff's former spouse in concealing marital assets from Plaintiff. As of the filing of these motions, the property division trial in Plaintiff's dissolution action, *In re Marriage of Joiner* (Super. Ct. L.A. County, 2021, No. 21STFL01704), was ongoing. However, the parties have since settled the property division issues and the property division trial was vacated. Accordingly, the motion to stay is moot.

Defendants also seeks a protective order to stay Defendants' obligations to respond to written discovery Plaintiff propounded on Defendants "until thirty (30) days after the conclusion of the property division trial" (Notice of Motion for Protective Order.) As set forth above, the parties settled the property division issues and the property division trial was vacated. Thus, this motion for protective order has also been rendered moot.

Defendants are to give notice of the Court's ruling and to file proof of service of same.